

		resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) Plaintiff's initial meet and confer letter failed to identify which responses Plaintiff deemed were deficient. Thereafter, Defendant failed to respond to Plaintiff's requests to meet and confer via telephone. The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i>. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT, no longer than five pages</i>, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The parties are strongly encouraged to resolve this dispute cooperatively if possible. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
18	25-01458075 <i>Thayer vs. TFSC, Inc.</i>	Motion for Leave to File Amended Complaint Plaintiff Amber Thayer's motion for leave to file a first amended complaint is DENIED. Procedural issues Plaintiff has not filed a proof of service showing the reply was served on Defendant TFSC, Inc. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As such, the Court declines to consider the reply. Defendant's objections to Plaintiff's evidence (ROA 94) Defendant objects to portions of the declaration of Justin Hewgill. The Court OVERRULES Defendant's objections. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "Generally,

leave to amend must be liberally granted, provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448 [cleaned up].)

Plaintiff seeks an order granting leave to file a first amended complaint (FAC) to add a new cause of action under the Private Attorneys General Act (PAGA).

Plaintiff filed her initial complaint on 2/3/25. (Hewgill Decl., ¶ 2.) On 3/6/25, Plaintiff filed a PAGA notice. (Hewgill Decl., ¶ 3.) On 5/13/25, Plaintiff attempted to file a FAC to add PAGA allegations, which was rejected. (Hewgill Decl., ¶¶ 4, 5; ROA 14.) On 7/29/25, Plaintiff filed an ex parte application for the Court to accept Plaintiff’s FAC, which was denied on 7/30/25. (Hewgill Decl., ¶¶ 6-7.) Plaintiff then filed this motion on 11/20/25.

Defendant contends amendment would be futile as Plaintiff’s PAGA claim is time-barred, Plaintiff had no automatic right to amend her complaint without leave of court, and Plaintiff failed to act diligently in seeking leave to amend.

“A PAGA action is subject to a one-year statute of limitations.” (*Arce v. The Ensign Group, Inc.* (2023) 96 Cal.App.5th 622, 630 [citation omitted].) “But because a would-be PAGA plaintiff can only bring her claim to court 65 days after submitting a prefiling notice to the [Labor and Workforce Development Agency], the statute of limitations is tolled for 65 days from the time the notice is submitted.” (*Ibid.* [citing Labor Code, § 2699.3, subs. (a)(2)(A), (d).])

Plaintiff acknowledges the 65-day period after filing her notice ended on 5/12/25. (Mtn. at 2:19-20; Hewgill Decl., ¶ 3.) Plaintiff therefore concedes her filing was untimely as she states she attempted to file a FAC a day later on 5/13/25. (Hewgill Decl., ¶ 4.)

Plaintiff contends that relying on Labor Code section 2699.3, subdivision (a)(2)(c) she was “under the impression that so long as Plaintiff filed her Amended Complaint to add PAGA allegations with 60 days of May 12 (which she did), she should be allowed to amend her Complaint by right.” (Mtn. at 2:23-3:6.)

Labor Code section 2699.3, subdivision (a)(2)(C) provides, “Notwithstanding any other provision of law, a plaintiff may as a matter of right amend an existing complaint to add a cause of action arising under this part at any time within 60 days of the time periods specified in this part.”

As an initial matter, Plaintiff provides no authority, Labor Code section 2699.3 subdivision (a)(2)(C) dispenses with the procedural requirement for seeking leave to amend a complaint once an answer has been filed. (*See Code Civ. Proc.*, § 472.)

	Moreover, though Plaintiff attempted to file a FAC on 5/13/25, it was rejected by the court. (ROA 14.) The Clerk's comments in the 5/15/25 Notice of Rejection stated, "Leave of court is required or a signed stipulation and order, as an answer to complaint filed on 02/03/2025, see Roa #2." (ROA 14.) As such, as of 5/15/25, Plaintiff should have been aware the court required leave to file an amended complaint (absent a signed stipulation and order) given an answer had been filed. Despite the court rejecting the FAC and despite being aware of the 60-day period provided by Labor Code section 2699.3, subdivision (a)(2)(C), Plaintiff waited over two months after the rejection before filing an ex parte application on 7/29/25 to request the Court accept Plaintiff's FAC based on Labor Code section 2699.3, subdivision (a)(2)(C). The ex parte was denied on 7/30/25. (ROA 46.) Plaintiff then waited almost four months after the ex parte was denied before bringing this motion on 11/20/25. "[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." (<i>Huff v. Wilkins</i> (2006) 138 Cal.App.4th 732, 746 [citation omitted].) Plaintiff has not demonstrated diligence in seeking leave as Plaintiff provides no explanation for the two months between her rejected attempt to file the FAC and moving ex parte nor the additional almost four months between the denial of the ex parte and the filing of this motion. As such, notwithstanding the liberal policy for allowing amendments to pleadings, the Court does not find leave to amend warranted where Plaintiff's proposed PAGA claim would be time-barred and Plaintiff has not demonstrated diligence in seeking leave to amend. The Court DENIES Plaintiff's motion for leave to file a first amended complaint.
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